

MEMORANDUM OF UNDERSTANDING
BETWEEN
THE GOVERNMENT OF THE UNITED STATES OF AMERICA
AND
THE GOVERNMENT OF THE REPUBLIC OF PALAU
FOR COOPERATION ON THE TRANSFER OF THIRD-COUNTRY
NATIONALS FROM THE UNITED STATES TO PALAU

The Government of the United States of America and the Government of the Republic of Palau (hereinafter referred to individually as a “Participant” and collectively as “Participants”), nations in free association with one another,

SHARING a joint history and common values, norms, and rights regarding individuals and equal opportunity for all;

HAVING the closest of possible relationships between sovereign nations, and continuing to help each other with challenges to the extent needed within their capabilities;

RECOGNIZING the immigration policy goals of the Government of the United States of America and the authority and responsibility of the President of the Republic of Palau under the Constitution of the Republic to implement and enforce the laws of Palau, including those relating to international relations, immigration, border control, and national security in the best interests of the Republic of Palau and that, pursuant to Title 13 of the Palau National Code, the Executive Branch of the Government of the Republic of Palau exercises responsibility for the regulation of entry, residence, and removal of non-citizens, including the issuance of visas and work permits; and

AFFIRMING their willingness to cooperate concerning the potential transfer of certain third-country nationals present in the United States to Palau, in accordance with legal requirements and in a dignified, safe, and timely manner,

Have reached the following understandings:

Two handwritten signatures in blue ink are located in the bottom right corner of the page. The first signature is a stylized, cursive 'J' or 'A' shape. The second signature is a more complex, cursive script, possibly reading 'Jm' or 'Jm'.

1. Purpose and Scope

- 1.1. The purpose of this Memorandum of Understanding (MOU) is to facilitate the transfer to and orderly reception in Palau of third-country nationals from the United States of America identified by the Government of the United States of America and accepted by the Government of the Republic of Palau in accordance with law in a manner that supports and furthers humanitarian objectives while safeguarding public safety, addresses the Republic of Palau's need for foreign labor, and contributes to the development of the Republic of Palau.
- 1.2. The Government of the United States of America does not intend to propose transferring to Palau any third-country nationals who have been arrested for, charged with, or convicted of crimes other than immigration-related offenses whose arrests, charges or convictions are known to the Government of the United States, or who are the subject of Interpol criminal notifications.
- 1.3. The Government of the United States of America intends to propose transferring to Palau third-country nationals only from nations with which Palau has diplomatic relations and which are mutually decided upon by the Participants.
- 1.4. The Government of the United States of America intends to propose transferring to Palau only the following categories of individuals with final orders of removal:
 - (a) Single individuals without children, to the extent the Government of the United States of America is aware, or is made aware, of applicable family relationships or the lack thereof; and
 - (b) Family units, defined as a third-country national, his or her legal spouse, and/or his or her child(ren) under age 21, all of whom have a final order of removal, to the extent the Government of the United States of America is aware, or is made aware, of applicable family relationships or the lack thereof. The Government of the United States of America intends to transfer such family units to Palau at the same time.



- 1.5. The Government of the United States of America does not intend to transfer unaccompanied minors to Palau pursuant to this MOU.
- 1.6. The Government of the United States of America intends to propose the transfer of third-country nationals from the United States to Palau only if fewer than 75 third-country nationals transferred under this MOU remain present in Palau at the time of the proposed transfer.

2. Case-by-Case Consideration and Documentation

- 2.1. The Government of the United States of America may in its complete discretion propose to the Government of the Republic of Palau the transfer of such third-country nationals, and the Government of the Republic of Palau may in its complete discretion consider accepting or rejecting such a proposal in whole or in part.
- 2.2. The Participants intend to develop, to the extent appropriate, operating procedures to assist with implementing this MOU.
- 2.3. The Government of the United States of America intends to provide the Government of the Republic of Palau with valid passports for all third-country nationals proposed for transfer to Palau. The Government of the United States of America also intends to provide the Government of the Republic of Palau all of the biographical, medical, criminal, employment, and immigration information, including all countries from which the individual was granted withholding of removal, for each third-country national proposed for transfer to the extent available and permitted by law. The Government of the United States of America additionally intends to provide to the Government of the Republic of Palau the results of a comprehensive health screening for each such third-country national, performed within ninety (90) days of the proposed transfer date, and not to propose any individual with a communicable disease, a chronic disease requiring ongoing treatment in a hospital setting, or with a mental health disorder, to the extent such disease(s) or disorder(s) are known to the Government of the United States of America.
- 2.4. The Government of the United States of America proposes to inform the Government of the Republic of Palau of any individuals it intends to



transfer to Palau at least 14 days prior to such proposed transfer. After receipt of all information for third-country nationals proposed for transfer to Palau, the Government of the Republic of Palau intends to notify the Government of the United States of America of its decision to reject or accept any such nationals within a reasonable period of time, which is understood to mean no later than the day before the transfer date proposed by the Government of the United States of America. The Government of the Republic of Palau intends to notify the Government of the United States of America if it seeks more time to review the information referenced in Section 2.3 above, or if it seeks any additional information on any third-country national proposed for transfer to Palau.

3. Legal Status and Residency Requirements

- 3.1. The Government of the Republic of Palau intends to admit all individuals accepted under this MOU to the Republic of Palau pursuant to a valid visa or work permit issued under the laws and regulations of the Republic, including all legal and procedural requirements applicable to any other applicant for entry, residence, or employment in Palau.
- 3.2. The Government of the Republic of Palau intends to grant each individual accepted under this MOU lawful authorization to enter and remain in the Republic of Palau under the applicable provisions of Palauan law upon each individual's arrival in Palau. Such authorization may include, for example, a Nonresident Work Permit issued in accordance with Title 13 of the Palau National Code or a Temporary Visa issued in accordance with Section 311 of the Immigration Regulations. During the period of such authorization, the Government of the Republic of Palau intends to facilitate placement of the individual in lawful employment where possible and with the consent of each individual, for the purpose of transferring the individual to non-resident worker status.
- 3.3. The Government of the Republic of Palau retains full authority, in accordance with its laws, to deny or revoke any visa or permit if an individual fails to maintain lawful status or violates the conditions of their stay. Any individual who loses the legal right to remain in the Republic of Palau may be deported in a manner consistent with the laws



of the Republic of Palau and its international legal obligations, including the principle of nonrefoulement, which prohibits return of the individual to a country in which they have demonstrated the likelihood of persecution or torture.

4. Assurances

- 4.1. The Government of the Republic of Palau assures the Government of the United States of America that it intends to treat any third-country nationals transferred from the United States to Palau in a manner that is in accordance with the principle of nonrefoulement, which prohibits return of the individual to a country in which they have demonstrated the likelihood of persecution or torture, and its obligations under the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, adopted in New York on December 10, 1984; any other international legal obligations; and its national constitution, laws, regulations, and immigration and visa policies. The Government of the Republic of Palau further assures the Government of the United States of America that it would not persecute or torture any third-country nationals transferred from the United States to Palau.
- 4.2. The Government of the United States of America assures the Government of the Republic of Palau that it intends to transport any third-country nationals transferred from the United States to Palau on commercial airline or charter flights under humane conditions and without bodily restraints during the flights, except when a demonstrated necessity arises to ensure the health or safety of the third-country national, U.S. immigration officers, crewmembers, or other passengers onboard the flight. After the third-country nationals board flights from the United States to Palau, the Government of the United States of America intends to provide each third-country national with information about Palau provided by the Government of the Republic of Palau. The Government of the United States of America intends to permit a representative of the Government of the Republic of Palau to accompany the third-country nationals onboard the flights from the United States to Palau to provide further information on and answer any questions about the Republic of Palau.



5. Final Provisions

- 5.1. The Participants intend to consult to resolve any questions about the interpretation or implementation of this MOU.
- 5.2. Either Participant may discontinue its participation in this MOU at any time but, in such case, intends to endeavor to provide 30 days' written notice to the other Participant through diplomatic channels.
- 5.3. The Participants intend to discuss the potential provision of financial assistance by the Government of the United States of America to assist the Government of the Republic of Palau with the costs associated with the reception of any individuals transferred under this MOU.
- 5.4. Nothing in this MOU is intended to create any rights or obligations under international or domestic law, including with respect to the disbursement or obligation of funds. All actions taken under this MOU are subject to the availability of funds and the applicable laws and regulations of both Participants.
- 5.5. This MOU becomes operative upon signature by both Participants. The MOU is intended to remain operative for one year from the date of signature but may be renewed by mutual written decision of the Participants.

Signed, in two originals, in the English Language.

**FOR THE GOVERNMENT OF THE
UNITED STATES OF AMERICA:**

**FOR THE GOVERNMENT OF
THE REPUBLIC OF PALAU:**

.....
Date: December 24, 2025
Place: Koror

.....
Date: Dec. 24, 2025
Place: Koror, Palau

AS